

21STCV32624 21STCV32624

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-20

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C07%2F20%2F2026

Source SHA-256: 6d651462d373a75fb54448a530fde304ccc952a6469efba0c214999dc13f8580

Case Number: 21STCV32624 Hearing Date: July 20, 2026 Dept: 529

lafayette apt. associates, l.p. v. kristine rose J robles, ET AL.

Motion to compel further responses

Date of Hearing: July 20, 2026 Trial Date: 9-14-26

Department: 529 Case No.: 21STCV32624

Moving Party: Defendant Derek Keane, pro per

Responding Party: Plaintiff Lafayette Apt. Associates, L.P.

BACKGROUND

On September 2, 2021, Plaintiff Lafayette Apt. Associates, L.P. filed a complaint against Kristine Rose J Robles, Kristian Apple J. Robles, Roselie Poblete, and Derek Kean, for Breach of Contract and Common Counts alleging a debt of \$39,802.47. On November 8, 2022, the court overruled the demurrer of Defendant Derek Keane to the complaint.

On December 6, 2022, Derek Keane in pro per answered and filed a Cross-Complaint against Lafayette and his co-defendants, alleging: Retaliatory Eviction, and Contribution. Keane alleges a wrongful eviction on multiple alleged bases. (Cross-Comp., ¶¶ 9-12.)

On December 8, 2023, Plaintiffs filed a first amended complaint without leave of court for (1) Breach of Contract; (2) Account Stated; (3) Restitution for Unjust Enrichment; (4) Quantum Meruit; and (5) Conversion. Like the complaint, the First Amended Complaint alleges a breach of the lease agreement and seeks \$39,802.47 in past due rent and utilities. On June 18, 2024, the court granted Plaintiff's motion for leave to file a first amended complaint, thereby deeming the December 8, 2023, first amended complaint filed.

On November 24, 2025, Plaintiff filed a notice of partial settlement. On February 18, 2026, Plaintiff dismissed Kristine Rose J Robles, Kristian Apple J. Robles and Roselle Poblete.

On April 15, 2026, the court granted Keane leave to file a first amended cross-complaint. On April 30, 2026, Kean filed a first amended cross-complaint against Lafayette, Kristine Rose J Robles, Kristian Apple J. Robles and Roselle Poblete for Retaliatory Eviction, Contribution, Violation of the Right to Privacy, and Unauthorized Disclosure and Use of Personal Identifying Information. Cross-Complainants answered on May 7 and 22, 2026, respectively.

[Tentative] Ruling

Defendant/Cross-Complainant's Keane's Motion to Compel Further Responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents is GRANTED IN PART AND DENIED IN PART.

DISCUSSION

Standard

"(T)he propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general." (Code Civ. Proc., § 2030.300, subd. (a).) A party may move for further responses to requests for document production where "1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general." (Code Civ. Proc., § 2031.310, subd. (a).)

The motion must include a meet and confer declaration which "state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., §§ 2016.040; 2030.300, subd. (b)(1), 2031.310, subd. (b)(2)).) California Rules of Court Rule 3.1345 requires all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules of Court, Rule 3.1345, subd. (a).) Alternatively, "the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute." (Code Civ. Proc., §§ 2030.300, subd. (b)(2), 2031.310, subd. (b)(3).) "In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute." (Code Civ. Proc., §§ 2030.300, subd. (b)(2), 2031.310, subd. (b)(3).)

Notice of the motion must be provided "within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. . ." (Code Civ. Proc., § 2030.300, subd. (c).) The responding party has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

"The court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h).)

Self-Represented Party

"Although self-represented litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party. ... 'Trial judges must acknowledge that in propria persona litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' (Citation). When one party has counsel and the other does not, the trial court 'should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.'" (Petrosyan v. Prince Corp.

(2013) 223 Cal.App.4th 587, 594.)

Timing

Defendant/Cross-Complainant Keane represents service of all discovery on May 4, 2026. Responses were served on June 5, 2026. The motion was filed 17 days later on June 22, 2026. Keane requested a telephonic meet and confer on June 12, 2026, but no response was received during the 10-day window before the filing of the motion.

Further Responses

The motion appears to rely on incomplete responses. For the special interrogatories and document production, the separate statement however only identifies the subject discovery and reason to compel a further response. No actual content is provided for responses to special interrogatories, numbers 1, 2, 3, 4, 5, and 7. Special interrogatory number 6 only provides limited content. Keane incorporated the full responses to Form Interrogatories. The form interrogatories however appear complete. Overall, the separate statement fails to comply with the statutory standard, but Keane attached copies of all discovery, thereby allowing the court to consider the merits of the motion.

Lafayette in opposition maintains the “not known” response to special interrogatories complies; the responses to the document requests is code compliant, and production of non-privileged material occurred; and, the form interrogatories state all known facts. Lafayette challenges the motion on an insufficient meet and confer process, and the filing of the motion prior to an opportunity to meaningfully engage.

The 10-day window regarding the offer to meet and confer and the filing of the motion, while short remains sufficient. The responses provided by Lafayette suggest no intention to meaningfully engage in the meet and confer process.

Documents

The responses to request for production of documents, numbers 1-5 statutorily comply. (Code Civ. Proc., § 2031.230.) On Number 6, it remains unclear whether any privileged information was withheld. No objections or a privilege log was apparently produced or demanded. (Code Civ. Proc., § 2031.240.) The motion is DENIED as to request for production of documents.

Special interrogatories

Lafayette presents a number of objections, including vague and ambiguous, overbroad, and unduly burdensome and oppressive, then responds with a “Not known” statement for special interrogatories numbers 1-5. Number 6 declines to respond on grounds of attorney client privilege. Number 7 constitute objections, including vague and ambiguous, impermissible expert opinion, legal conclusion, overbroad, unduly burdensome and oppressive.

Lafayette offers no support for its objections for vague and ambiguous, overbroad, and unduly burdensome and oppressive (see above). The requests are specific and sufficient in seeking information regarding both the actual lease and lessees of the property, the application process, procedures for protection of private information submitted in said application, and the basis of the damages claim. The objections on form of question, overbroad and burdensome lacks support and appear disingenuous. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 superseded by statute on unrelated ground as stated in *Guzman v. General Motors Corp.* (1984) 154 Cal.App.3d 438, 444 [“Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response”]; *West Pico Furniture Co. v. Sup. Ct.* (1961) 56 Cal.2d 407, 418 [“The objection of burden is valid only when that burden is demonstrated to result in injustice”]; *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431; *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224–225.) The attorney client privilege in number 6 also lacks support. (*Costco Wholesale*

Corp. v. Superior Court (2009) 47 Cal.4th 725, 734; .” (State Farm Fire & Casualty Co. v. Superior Court (1997) 54 Cal.App.4th 625, 639.)

The “not known” response while certainly concise remains substantively non-responsive. (Code Civ. Proc., § 2030.220.) Plaintiff/Cross-Defendant cannot file an action for \$39,802.47 in damages based on unpaid rent and then deny any knowledge as to the basis of the alleged debt, including the lease terms, tenant acceptance policies, and application protections. The sought after information is relevant. (Cruz v. Superior Court (2004) 121 Cal.App.4th 646, 653–654.)

The motion is GRANTED in its entirety as to special interrogatories numbers 1-7. Lafayette to provide supplemental responses within 30 days.

Form Interrogatories

Lafayette provides the following responses.

15.1: “Responding Party denies the material allegations of the Complaint and asserts affirmative defenses as set forth in the Answer. Many of the affirmative defenses are pleaded to preserve Responding Party’s rights and are based on overlapping facts. The principal factual bases for Responding Party’s defenses include Plaintiff’s failure to comply with statutory notice requirements, Plaintiff’s waiver of alleged defaults through its conduct, and Plaintiff’s failure to satisfy conditions precedent to relief. Discovery is ongoing, and Responding Party reserves the right to supplement this response. Investigation and discovery are continuing, and Responding Party reserves the right to amend or supplement this response as additional information becomes available.”

50.1: “Responding Party denies the material allegations identified in the Answer and asserts the affirmative defenses set forth therein. The facts supporting these denials and defenses substantially overlap and include Plaintiff’s compliance with applicable statutory requirements, service of required notices, Defendant’s failure to comply with lease and/or park obligations, and Defendant’s conduct giving rise to the action. Discovery and investigation remain ongoing, and Responding Party reserves the right to supplement this response.”

50.2: Response: “Respondent objects on the grounds that the interrogatory is vague and ambiguous, including as to the terms/phrase “any agreement.” Respondent objects to this request on the ground that it calls for an impermissible expert opinion. Respondent objects to this interrogatory on the ground that it is unreasonably cumulative, duplicative, and/or identical to other requests propounded by the Defendant/Cross-Complainant in this action. Respondent objects to this interrogatory to the extent it seeks information protected from disclosure by the attorney-client privilege. Respondent objects to the entirety of this interrogatory on the grounds that it is unduly burdensome and oppressive because it is calculated to annoy and harass. Subject to and without waiving this objection, Responding Party responds as follows: Unknown. Investigation and discovery are continuing, and Responding Party reserves the right to amend or supplement this response as additional information becomes available.”

Keane essentially presents the same basis for compelling further responses as the special interrogatories: Insufficient factual responses supporting the sought after \$39,802.47 in damages or defenses to the first amended cross-complaint as presented in the answer.

The objections, again, lack merit and are incomplete (see above). Denial of knowledge of any witnesses, qualified persons, knowledge of the lease, from Lafayette undermines its own position seeking collection on the lease. Lafayette cannot withhold company information for its own convenience while still seeking collection. The objections to number 50.2, especially the form of question objection to a Judicial Council drafted form interrogatory categorically supports a finding of intentionally evasive conduct. Given the filing of the answer to the first amended cross-complaint, “unknown” response to the request for information in support of all defenses again constitutes an insufficient response.

The motion is GRANTED in its entirety as to form interrogatories 15,1, 50.1 and 50.2. Lafayette to provide supplemental responses within 30 days.